

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/04/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER: C26-00046
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CASE NAME: STEVEN SMITH VS. JESSICA ZAPRUDER

*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

See Line 12 below. The CMC is continued to October 30, 2026, at 8:30 a.m. The parties should be moving in the direction of mediation if they do not settle on their own. In the event that the tentative ruling on Line 12 is contested, counsel should also appear (Zoom okay) for CMC on this hearing date.

2.	9:00 AM	CASE NUMBER: C22-02775
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CASE NAME: JEFFREY TUBBS VS. CALIFNORA-NEVADA ANNUAL CONFERENCE OF THE UNITED METHODIST CHURCH, ET AL.

HEARING IN RE: APPLICATION PERMITTING JOEL M. WALKER, ESQ. TO APPEAR AS COUNSEL PRO
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HAC VICE FOR PLAINTIFF
FILED BY: TUBBS, JEFFREY
TENTATIVE RULING:

The pro hac vice application of Joel Walker is **approved**.

3. 9:00 AM CASE NUMBER: C22-02776
CASE NAME: JOHN RC ROE VS. DOES 4-100
HEARING IN RE: APPLICATION PERMITTING JOEL M. WALKER, ESQ. TO APPEAR AS COUNSEL PRO
HAC VICE FOR PLAINTIFF
FILED BY: ROE, JOHN RC
TENTATIVE RULING:

The pro hac vice application of Joel Walker is **approved**.

4. 9:00 AM CASE NUMBER: C23-02106
CASE NAME: SANTIAGO MORALES VS. DWELLEY FAMILY FARMS, LLC
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Plaintiff Santiago Morales moves for final approval of his class action and PAGA settlement with defendant Dwelley Family Farms, LLC. He also moves for approval of his attorney's fees, litigation costs, administration costs, and representative payment.

Since preliminary approval was granted, the administrator has mailed notices to 420 class members. No objections have been received, and only one class member opted out.

The motion is **granted**.

The original complaint was filed by Plaintiff on August 23, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims (based on a notice to the LWDA given on August 23, 2023), was filed on October 26, 2023. A Second amended Complaint was filed on March 21, 2024, and remains the operative complaint.

The settlement will create a gross settlement fund of \$321,860. The class representative payment to plaintiff will be \$7,500. Attorney's fees will be \$107,286.67 (one-third of the settlement). Litigation costs will be \$20,000. (Counsel actually incurred slightly more than that but have limited their claim to what was stated in the settlement and the preliminary approval.) The settlement administrator's costs will be \$7,250, somewhat less than estimated, resulting in a very slight increase in the average recovery. PAGA penalties are \$15,000, resulting in a payment of \$11,250 to the LWDA and \$3,750 to the aggrieved employees. The net amount paid directly to the class members will be about \$164,823. The fund is non-reversionary. Based on the estimated class size of 388, the average net payment for each class member is approximately \$419.

The proposed settlement will certify a class of all current and former non-exempt employees